

26PR00310 Estate of Lisa Kristin Forman

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-08-11

Motion: Petition for Letters of Administration

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Tentative Ruling: Estate of Lisa Kristin Forman

Case Number

26PR00310

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 08/11/2026 - 09:00

Nature of Proceedings

Petition for Letters of Administration

Tentative Ruling

Probate Notes:

The following must be submitted:

Proof of Re-Publication. The Proof of Publication is woefully defective.

Jurisdiction of the Probate Court is obtained by publication in accordance with Article 3 of Division 7, Part 2, Chapter 2 Probate Code. (Prob. Code, § 8003(b).)

Publication requires the notice to be published in a newspaper adjudicated as a newspaper of general circulation in the city of decedent's residence (Prob. Code, §§ 8121, 7122) and to contain the substantially same language and format shown in Probate Code section 8100. If the city of decedent's residence has no newspaper adjudicated as a newspaper of general circulation, publication must occur "in a newspaper of general circulation in the county which is circulated within the area of the county in which the decedent resided or the property is located." (Prob. Code, §8121(b).)

It is unacceptable to merely file a copy of the newspaper clipping as proof of publication. A Petitioner must obtain an affidavit executed under the penalty of perjury by the person with authority to affect publication at the newspaper. (Prob. Code, §8124.)

Santa Maria Times has not been adjudicated a newspaper of general circulation in the city of Lompoc, where Decedent was a resident. A declaration of substantial compliance (Prob. Code, § 8122) cannot remedy this issue, because the Lompoc Register is plainly listed on the Court's website as the publication adjudicated for the city of Lompoc.

REPUBLICATION IN THE LOMPOC REGISTER IS REQUIRED.

Proof of Service of Notice of Hearing (Form DE-121). Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 8100 & 8110.) Notice must be sent to the person, not the person's representative. (§1220.) No such document was filed as to Zachary Forman.

Nomination of Administrator. Petitioner does not have priority of administration over Zachary Forman pursuant to Probate Code section 8461. Please submit a nomination from all those with equal or greater priority. A written declination must be filed by or on behalf of an individual who is entitled to priority for issuance of Letters of administration but does not desire to act, or evidence must be produced that the person with priority is not competent under Probate Code section 8402 or refuses to act. (Local Rule 1752(d)1.)

Because republication is necessary, it is recommended that the matter be continued to a date to be set by the Court at the hearing, unless the party appears and requests a different date, or submits a request for a different continuance date prior to the hearing. (Local Rule 1721(c)(2)(A-B).) If the matter is continued, documents must be submitted at least 10 days prior to the new hearing date to be considered.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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